

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/16).
- 2) Per the Findings and Order After Hearing (FOAH) filed 11/21/24, Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM.
- 3) On 11/27/24, the Court granted a Domestic Violence Restraining Order (DVRO) after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties; however, Father was awarded sole legal and sole physical custody.
- 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother rebutted the Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody; (c) modification of the parenting time orders to increase her time an extra day during the week

1 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
2 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.

3 5) On 10/8/25, Mother filed an Income and Expense Declaration.

4 6) On 11/17/25, the parties appeared for Readiness hearing. The matter was scheduled for mediation
5 with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.

6 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
7 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
8 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
9 Thursday morning school drop-off) on weekends that Mother does not have parenting time.

10 8) On 11/5/25, Father filed an Income and Expense Declaration.

11 9) On 11/12/25, Mother filed a Reply Declaration reiterating her requests.

12 10) On 1/6/26, the parties attended FCS mediation but did not reach an agreement.

13 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.

14 12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary)
15 hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing
16 and set all pending issues for long-cause hearing on 5/21/26.

17 13) On 5/6/26, Mother filed an Income and Expense Declaration.

18 14) On 5/21/26, the parties appeared at the long-cause hearing and the Court, in pertinent part: (a)
19 determined Mother rebutted the Family Code section 3044 presumption against joint custody; (b)
20 granted Mother's request for joint legal custody; (c) increased Mother's parenting time with the
21 minor children from Tuesdays pick-up afterschool to Thursday drop off at school with alternate
22 weekends; and (d) ordered the parties to attend FCS Mediation on 6/18/26. The Court made
23 additional orders, including continuing the matter to 6/30/26 for issues related to child support,
24 summer schedule, vacation schedule, and make-up time.

25 15) On 6/18/26, the parties attended FCS mediation and were able to reach a partial agreement.

26 16) At the prior 6/30/26 hearing, the Court ordered that Chloe shall attend Lowell High School for the
27 upcoming 2026-2027 school year, Paige shall attend Saint Peter and Paul Elementary and Middle
28 School through 8th grade, and all outstanding issues are continued to 7/30/26. The Court ordered
29

each party to serve supplemental declarations to detail their position on the remaining issues at least ten days before the hearing.

17) On 7/20/26, Mother filed a supplemental declaration requesting guideline child support and spousal support retroactive to 2/1/26 based on Chloe living with Mother full time and Paige being on a 2-2-5 parenting time schedule. Mother states her unemployment and increased parenting time has resulted in depletion of funds.

18) On 7/20/26, Mother filed an Income and Expense Declaration.

19) On 7/20/26, Father filed an Income and Expense Declaration.

20) At the prior 7/30/26 hearing, Father objected to Judge Pro Tem, Judith Harding hearing the matter; therefore, the matter was continued to 08/20/26.

21) On 8/7/26, Mother filed an Income and Expense Declaration.

22) On 8/10/26, Father filed supplemental declaration in opposition to Mother's request for modification of support. Father seeks enforcement of prior support orders and requests Mother be ordered to pay 50% of the school tuition costs for the minor children. Father requests the Court remind Mother not to involve the minor children in these court proceedings.

23) On 8/10/26, Mother filed a supplemental declaration reiterating her request for modification of support. It appears to the Court that Mother may have accidentally filed this supplemental declaration again on 8/11/26.

B. Findings and Order

1) Mother's request for modification of the 2/11/25 support order is GRANTED retroactive to 2/1/26 as the Court finds Mother met her burden of showing a change in circumstances warranting a modification of support given that Mother's employment status and the parties' parenting time changed. See *Marriage of Bardzik* (2008) 165 CA4th 1291, 1303-1304.

2) For the period of 2/1/26 (date on which Chloe started living with Mother fulltime) to 5/1/26 (date on which Mother's employment ended), and in accordance with" XSpouse A" attached hereto and incorporated herein, Father owes Mother \$4,240 in guideline monthly child support and \$3,824 in guideline monthly spousal support for a total monthly support order of \$7,764.

3) For the period of 5/1/26 (date on which Mother's employment ended) - 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule), and in accordance with" XSpouse B"

1 attached hereto and incorporated herein, Father owes Mother \$5,326 in guideline monthly child
2 support and \$5,313 in guideline monthly spousal support for a total monthly support order of
3 \$10,408.

- 4 4) Effective 5/21/26 (date on which the Court ordered a 2-2-5 parenting time schedule), and in
5 accordance with “XSpouse C” attached hereto and incorporated herein, Father owes Mother
6 \$5,677 in guideline monthly child support and \$5,576 in guideline monthly spousal support for a
7 total monthly support order of \$11,003. Monthly payments shall commence on 9/1/26 and are due
8 and payable by the 1st of every month thereafter.
- 9 5) Father owes Mother \$23,292 in support arrears for the period 2/1/26 – 4/30/26 (\$7,764 x 3), plus
10 \$7,050.54 in support arrears for the period of 5/1/26 – 5/21/26 (\$335.74/day for 21 days), plus
11 \$36,555.30 in support arrears for the period of 5/21/26 – 8/31/26 (\$3,549.30 for the rest of May +
12 (11,003 x 3) for June, July, and August). This means that Father owes Mother a total of
13 \$69,897.84 in support arrears less any support Father already paid during this period. The parties
14 are ordered to meet and confer regarding the payment of arrears to account for and subtract: (a)
15 any support Father already paid during this time, and (b) any amount of support overpayment
16 Mother was previously ordered to reimburse Father. Should meet and confer efforts fail, the
17 Court will reserve jurisdiction over calculation of arrears to the time of trial.
- 18 6) The XSpouse reports are based on the parties’ respective Income and Expense Declarations
19 (Mother’s filed 5/6/26 and 7/20/26 and Father’s filed 7/20/26) and the following distinctions:
- 20 a. XSpouse A is based on Mother’s employment and 100% parenting time with Chloe and
21 28% parenting time with Paige.
 - 22 b. XSpouse B is based on Mother’s unemployment and 100% parenting time with Chloe
23 and 28% parenting time with Paige,
 - 24 c. XSpouse C is based on Mother’s 100% parenting time with Chloe and 50% parenting
25 time with Paige.
- 26 7) Father’s request that Mother be ordered to pay for 50% of the school tuition costs of both minor
27 children is DENIED as Father has been solely responsible for these costs since 2020.
- 28 8) Mother is admonished not to involve the minor children in these court proceedings.
- 29 9) The Court will prepare the Findings and Order After Hearing.

26-08-20 XSpouse A Devlin v. Devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	28.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	6200
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	115
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	4683
Total	25551
Support	
Addons	-299
Guideln CS	4240
S.Clara SS	3824
Total	7764

Proposed**Tactic 9**

CS	3843
SS	3669
Total	7512
Saving	368
Releases	-2

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	25552	25920
Percent change	0%	1%

Father

Payment cost/benefit	-7764	-7592
Net spendable income	13104	13276
Change from guideline	0	172
% of combined spendable	51%	51%
% of saving over guideline	0%	47%
Total taxes	11665	11745
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469

Mother

Payment cost/benefit	7764	7960
Net spendable income	12447	12643
Change from guideline	0	196
% of combined spendable	49%	49%
% of saving over guideline	0%	53%
Total taxes	1402	953
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	4595	4595

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		36 - 64	750	0	299 Mother	4,240 Father	3,940 Father
Chloe	0000-00-00	0 - 100	375	0	158 Mother	3,712 Father	3,553 Father
Paige	0000-00-00	72 - 28	375	0	141 Mother	528 Father	387 Father

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26-08-20 XSpouse B Devlin v. Devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	28.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	0
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	750
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	-750
Total	20118
Addons	-231
Guideln CS	5326
S.Clara SS	5313
Total	10408

Support**Proposed****Tactic 9**

CS	5095
SS	5313
Total	10408
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	20118	20118
Percent change	0%	0%
Father		
Payment cost/benefit	-10408	-10408
Net spendable income	10461	10461
Change from guideline	0	-0
% of combined spendable	52%	52%
% of saving over guideline	0%	0%
Total taxes	11665	11665
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469
Mother		
Payment cost/benefit	10408	10408
Net spendable income	9658	9658
Change from guideline	0	0
% of combined spendable	48%	48%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		36 - 64	750	0	231 Mother	5,326 Father	5,095 Father
Chloe	0000-00-00	0 - 100	375	0	111 Mother	3,859 Father	3,747 Father
Paige	0000-00-00	72 - 28	375	0	120 Mother	1,468 Father	1,348 Father

26-08-20 XSpouse C Devlin v. Devlin 794941.xsp**2026****Fixed Shares**

	Father	Mother
Number of children	1	1
Percent time with NCP	0.00%	49.00%
Filing status	HH/MLA SINGLE	
Number of exemptions	3	1
Wages and salary	30000	0
Self employed income	0	0
Other taxable income	2562	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	29	750
Other medical expenses	0	0
Property tax expenses	1435	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	750	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	20868
Mother	-750
Total	20118
Support	
Addons	-251
Guideln CS	5677
S.Clara SS	5576
Total	11003

Proposed**Tactic 9**

CS	5427
SS	5576
Total	11003
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	20118	20118
Percent change	0%	0%
Father		
Payment cost/benefit	-11003	-11003
Net spendable income	9866	9866
Change from guideline	0	0
% of combined spendable	49%	49%
% of saving over guideline	0%	0%
Total taxes	11665	11665
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	18469	18469
Mother		
Payment cost/benefit	11003	11003
Net spendable income	10253	10253
Change from guideline	0	0
% of combined spendable	51%	51%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

Mother pays Addons

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		26 - 75	750	0	251 Mother	5,677 Father	5,427 Father
Paige	0000-00-00	51 - 49	375	0	104 Mother	1,934 Father	1,830 Father
Chloe	0000-00-00	0 - 100	375	0	147 Mother	3,743 Father	3,596 Father